

**STATE OF MINNESOTA
COUNTY OF WADENA — SEVENTH JUDICIAL DISTRICT**

In the Matter of the Dependency Proceeding Concerning B.J.C. and K.C.C.

Court File No. 80-JV-26-492

Case Type: Child in Need of Protection or Services (CHIPS)

**SECOND SUPPLEMENTAL MOTION AND DECLARATION REGARDING THE
TIMING AND SEQUENCE OF THE EMERGENCY HOLD,
WITH REQUEST FOR SUPPLEMENTAL FINDINGS**

PRO SE — JAMES CHAPMAN, FATHER

STATEMENT INCORPORATING PRIOR FILINGS BY REFERENCE

I, James Chapman, father of B.J.C. and K.C.C., submit this Second Supplemental Motion and Declaration ("this Filing") to place before the Court additional factual detail concerning the timing and sequence of events on the Monday the emergency hold was filed. This Filing does not replace, narrow, or supersede the Motion to Dismiss or, in the Alternative, for Stay Pending Proper Service (the "Prior Motion"), the Supplemental Motion to Dismiss or, in the Alternative, for Stay Pending Compliance with Minnesota CHIPS Law (the "Supplemental Motion"), the Motion for Expedited Relief, the Supplemental Constitutional Memorandum, or the Supplemental Notice to Preserve Evidence, all previously filed in this matter. Every factual statement, exhibit, and authority contained in those filings is incorporated herein as though fully set forth. This Filing supplements those filings with additional factual detail regarding the sequence of events described generally therein.

I. PURPOSE OF THIS SUPPLEMENTAL FILING

The Prior Motion and the Supplemental Motion establish that the emergency hold was filed only after I left the residence at the Department's direction, and that the Department verified, before I

left, that the Domestic No Contact Order did not prevent my wife from being alone with the children. This Filing sets out, in greater detail than previously stated, the timing of the events immediately preceding my departure and the filing of the hold. I submit this additional detail because the specific sequence and timing of a government actor's decisions is itself evidence of the decision's actual basis, and the Court should have the complete, particularized chronology available to it in evaluating whether an objective emergency existed at the moment the hold was filed.

II. SUPPLEMENTAL FACTUAL CHRONOLOGY

The statements in this Part are set out with the degree of specificity I am able to state, and I distinguish below between matters I personally observed and experienced, and matters I was later told by others and did not personally witness. All times are approximate. To the extent any timing described below is confirmed or corrected by dispatch logs, body-worn camera timestamps, jail release records, or agency records, I ask that those records — already the subject of my Supplemental Notice to Preserve Evidence — be used to establish the precise timing, and I renew my request that they be preserved, disclosed, and produced.

Matters within my personal knowledge:

On Monday, after the urinalysis was collected and I had immediately and visibly objected to contamination in the specimen, Department personnel remained on-site at my residence, with my children and me, for a period I estimate at approximately one hour, during which time they were awaiting my wife's return to the home following her release from custody.

Approximately thirty minutes before my wife's arrival, Department personnel informed me, in substance, that I should be prepared to leave, and that the children would remain in the home with their mother once she arrived. I personally received and heard this instruction.

When my wife's arrival was imminent, Department personnel knocked and confirmed that the time to leave had come. I left the residence at that time, in direct reliance on, and in compliance with, the Department's own instruction and its representation that the children would remain safely in the home.

I was not present for, and had no personal knowledge of, what occurred at the residence after I left, including whether or when any paperwork was provided to my wife. I did not learn of the emergency hold, or of the fact that a hold had been filed, until afterward, as set out more fully in the Prior Motion.

Matters I was later told and did not personally witness:

After I left, I was told, by a source with direct knowledge of the events at the residence, that hold-related paperwork concerning the children was provided to my wife within minutes of my departure. I did not personally witness this and cannot state it of my own knowledge; I state only that I was told this occurred, and I believe it to be true. I ask that this specific timing be confirmed through the records identified in Part IV below before the Court relies upon it as an established fact.

III. LEGAL SIGNIFICANCE OF THE SUPPLEMENTAL CHRONOLOGY

The Prior Motion and the Supplemental Motion already establish that no objective emergency existed at the moment the hold was filed. The additional detail set out above sharpens that showing in three respects.

First, if the account I was given regarding the timing of the hold paperwork is confirmed by the records identified in Part IV below — that it was provided to my wife within minutes of my departure — that interval is difficult to reconcile with a hold filed in response to information or circumstances arising after I left. A hold prepared and ready for delivery within minutes of a triggering event is more consistent with a decision made in advance of that event than with a decision made because of it. I ask the Court to treat this specific timing as unconfirmed pending production of the records identified below, while weighing it as a matter I was directly told occurred by a source with knowledge of those events.

Second, the sequence itself — an advance warning approximately thirty minutes before action was taken, a wait for a specific person's arrival, a knock confirming the moment had come, and a departure instructed and managed by the Department throughout — describes a coordinated, scheduled transition, not a response to imminent danger. Genuine imminent danger, by its nature, does not permit thirty minutes of advance notice and a managed handoff; it requires action

because waiting is unsafe. A process that includes advance warning, a waiting period, and a scheduled departure is the hallmark of a planned placement change, not of an emergency response to present danger.

Third, and independently, the Department's own conduct during the approximately one-hour period described in Part II is itself inconsistent with any contention that I presented an imminent danger to my children. During that entire hour, I remained in the residence with B.J.C. and K.C.C., in the presence of Department personnel, with no restriction placed on my contact with them and no action taken to separate us. If the Department believed at that time that I posed an immediate danger to my children, it would not have permitted me to remain alone with them, unrestricted, for an hour while it waited for my wife to arrive. The only change in circumstance between that hour, during which no emergency was declared, and the filing of the hold minutes later, was my departure — itself directed by the Department. The danger the Department later asserted did not arise from any new fact about me or the children; it arose, if at all, only from a change in the household's composition that the Department itself brought about.

This sequence is consistent with, and reinforces, authority already before this Court. The specific sequence of events leading up to a challenged government decision, including departures from the normal procedural sequence, is direct evidence of the decision's actual basis. *Village of Arlington Heights v. Metropolitan Housing Development Corp.*, 429 U.S. 252, 266-268 (1977). Once the record shows that a sequence of government conduct is inconsistent with the government's later asserted justification, the burden is properly on the government to reconcile that inconsistency. *Mt. Healthy City School Dist. Bd. of Educ. v. Doyle*, 429 U.S. 274, 287 (1977).

I do not ask this Court to find that any individual acted in bad faith, and this Filing does not require such a finding. I ask only that the Court weigh the timing described above, together with the chronology already in the record, in determining whether the Department has met its burden of establishing that an objective emergency existed at the moment the hold was filed, within the meaning of Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii).

IV. RENEWED REQUEST FOR PRESERVATION AND PRODUCTION OF TIME-SPECIFIC RECORDS

Because the timing described in this Filing is capable of objective verification, I renew and specifically direct my prior discovery and preservation requests to the following time-specific records, and request that the Department be ordered to produce them without further delay:

- Any record reflecting the time my wife was released from custody on that Monday, including jail or booking release logs;
- Dispatch logs, CAD records, and any officer or caseworker notes reflecting the time Department personnel and law enforcement arrived at, and departed from, the residence;
- The creation, drafting, and printing timestamps (including any metadata) for the emergency hold document and any related petition materials;
- Body-worn camera and dash-camera recordings covering the full period from the collection of the urinalysis through the provision of hold paperwork to my wife, including the specific segment in which I was informed to prepare to leave;
- Any internal communications (notes, emails, or text messages) reflecting when the decision to file an emergency hold was made, relative to the time of my departure from the residence.

These records will either confirm or correct the specific timing set out in Part II above, and I ask that the Court order their production consistent with Minn. R. Juv. Prot. P. 17.01 and 17.04, and consistent with the preservation already requested in my Supplemental Notice to Preserve Evidence.

V. RELIEF REQUESTED

For the reasons set forth above and in the Prior Motion, the Supplemental Motion, the Motion for Expedited Relief, and the Supplemental Constitutional Memorandum, I respectfully request that this Court:

- Consider the supplemental chronology set out in Part II above, together with the record already before the Court, in ruling on the Prior Motion and the Supplemental Motion;
- Order the Department to preserve and produce the time-specific records identified in Part IV above;

- Include, in any written findings issued on the Prior Motion or the Supplemental Motion, a specific finding addressing whether the timing described in Part II above is consistent or inconsistent with an objective emergency existing at the moment the hold was filed; and
- Grant such further relief as the Court deems just and appropriate.

VI. DECLARATION

I declare, under penalty of perjury under the laws of the State of Minnesota, that the statements of fact set forth in Part II of this Filing are true and correct to the best of my knowledge and recollection.

/s/ James Chapman

James Chapman (electronically signed), Pro Se — Father

RESERVATION OF RIGHTS

This Filing preserves, and does not waive, any argument raised in the Prior Motion, the Supplemental Motion, the Motion for Expedited Relief, or the Supplemental Constitutional Memorandum, including all claims arising under the Due Process Clause of the Fourteenth Amendment and under Minnesota statutory and procedural law. I reserve all rights and remedies available to me under state and federal law, including but not limited to claims under 42 U.S.C. § 1983. I am not asking this Court to adjudicate those claims today.

CONCLUSION

A hold prepared and delivered within minutes of a scheduled, Department-managed departure — preceded by thirty minutes' advance notice and a wait for a specific person's arrival — is not the record of an emergency response to imminent danger. It is the record of a planned transition. I ask this Court to weigh this timing, together with the chronology already before it, in determining whether the Department has met its burden under Minnesota and federal law.

Respectfully submitted,
James Chapman
Pro Se — Father